

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, February 13, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS Numbers 2022-25772 and 2024-30195 against Police Officer Sergio Musso, Tax Registry No. 966732. The case was conferenced on February 13, 2025, before Assistant Deputy Commissioner of Trials Paul M. Gamble Sr., who approved the negotiated penalty of Training for DADS Numbers 2022-25772 and 2024-30195, after an acceptance of the substantiation by Police Officer Sergio Musso. Charges and specifications will be dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board

DISAPPROVED

JUN 30 2025

JESSICA S. TISCH
POLICE COMMISSIONER

FOURTH ENDORSEMENT

COMMANDING OFFICER, POLICE COMMISSIONER'S OFFICE to First Deputy Commissioner, June 30, 2025. Please note the Police Commissioner's **DISAPPROVAL** of the Third Endorsement and **DISAPPROVAL** of the First Endorsement regarding Disciplinary Case Nos. 2022-25772 and 2024-30195 (PODS Case Nos. C-031925 and C-031196) against Police Officer Sergio Musso, Tax No. 966732.

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Sergio Musso and has determined that no disciplinary action is warranted for Disciplinary Case No. 2024-30195.

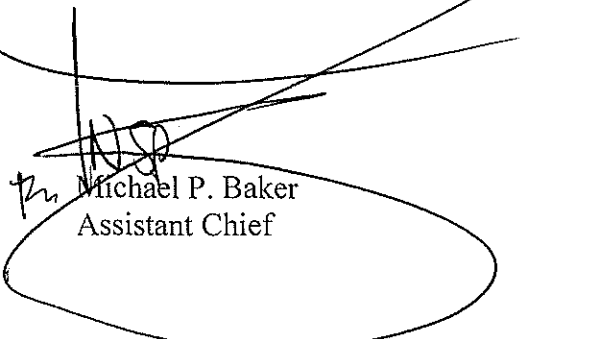
In this case, Officer Musso attempted to pull the complainant over for not having a license plate affixed to the front of his vehicle. Officer Musso ordered the complainant to put his vehicle in park. Instead of doing so, the complainant continued to move his vehicle, parallel parked his vehicle, and then attempted to walk away from the car stop. After reviewing the evidence and considering the totality of the circumstances, the Police Commissioner has determined that, although disorderly conduct may have been the incorrect violation to charge on the summons, Officer Musso had probable cause to issue a summons under New York State Vehicle and Traffic Law §1102, for the complainant's failure to obey Officer Musso's lawful order. However, the Police Commissioner recognizes that Officer Musso would benefit from Training regarding disorderly conduct.

Regarding the discourtesy in Disciplinary Case No. 2024-031925, the Police Commissioner agrees that Police Officer Musso would benefit from Training.

Therefore, the Police Commissioner directs that the charges and specifications in Disciplinary Case No. 2024-30195 be dismissed, and no disciplinary action be imposed. Separate and apart, Police Officer Musso will receive Training from the Legal Bureau in NYS Penal Law §240.20 (Disorderly Conduct).

Furthermore, the Police Commissioner directs that the charges and specifications in Disciplinary Case No. 2022-257721 be dismissed, and Police Officer Musso to receive Training from the Training Bureau in Courtesy, Professionalism, and Respect (to be initiated under separate cover).

Forwarded for your necessary attention.


Michael P. Baker
Assistant Chief

MB/al

cc: Commanding Officer, Legal Bureau



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

June 30, 2025

Memorandum for: Chief of Training

**Subject: UNIFORMED MEMBER OF THE SERVICE DIRECTED TO
RECEIVE TRAINING**

1. The Police Commissioner directs that Police Officer Sergio Musso, Tax No. 966732, receive Training in Courtesy, Professionalism, and Respect.
2. Said Training shall be performed expeditiously and in a manner consistent with Department policy.
3. Forwarded for your necessary attention.

BY DIRECTION OF THE POLICE COMMISSIONER


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

cc: Deputy Commissioner, Department Advocate